

Franciscus Dylan Rosario,
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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**(Related: CGC-21-594102;
CGC-25-631801)**

**PLAINTIFF'S REQUESTS FOR
ADMISSION (SET SIX)**

PLAINTIFF'S REQUESTS FOR ADMISSION (SET SIX)

Responses due 30 days after service. TAC anchor comments in italics.

RFA 1

Admit that Sarah Rash signed the February 25, 2021 denial letter.

RFA 2

Admit the genuineness of Claim File No. 1004-09-1054 under Policy No. CAAS100310857.

RFA 3

Admit that CSAA had received the SFPD 911 audio prior to issuing the February 25, 2021 denial.

RFA 4

Admit that the February 25, 2021 denial letter stated the investigation was ‘concluded’ and that CSAA was ‘not liable.’

RFA 5

Admit that Sarah Rash’s supervisor approved the February 25, 2021 denial.

RFA 6

Admit that CSAA used the phrase ‘concluded our investigation’ in denial letters to other claimants between 2020 and 2022.

RFA 7

Admit that CSAA did not interview Justin Rosemond prior to the February 25, 2021 denial.

RFA 8

Admit the genuineness of the claims manual pages addressing when liability is ‘reasonably clear’ under Insurance Code section 790.03, subdivision (h)(5).

RFA 9

Admit that CSAA’s pre-denial investigation did not satisfy Title 10, California Code of Regulations, section 2695.7, subdivision (d).

RFA 10

Admit that the February 25, 2021 denial was a business act or practice within the meaning of Business and Professions Code section 17200.

RFA 11

Admit that the person who approved the denial was a managing agent of CSAA within Civil Code section 3294, subdivision (b).

RFA 12

Admit that CSAA does not contend *Moradi-Shalal v. Fireman’s Fund Ins. Companies* (1988) 46 Cal.3d 287 bars this UCL claim.

RFA 13

Admit that CSAA continued litigating CGC-21-594102 after receiving the CAD number referenced on the police report.

RFA 14

Admit CSAA maintains training materials on Insurance Code section 790.03, subdivision (h).

RFA 15

Admit CSAA set or adjusted loss reserves for this claim before February 25, 2021.

RFA 16

Admit no verified response was served to Set Four or Set Five RFAs in CGC-25-631802 as of the date of this request.

RFA 17

Admit the police report did not contain the insured's 911 admissions quoted in Plaintiff's complaint.

RFA 18

Admit the CAD number on the police report could be used to obtain dispatch and 911 records.

RFA 19

Admit CSAA did not obtain body-worn camera footage before denying the claim.

RFA 20

Admit CSAA did not obtain the 911 audio before denying the claim.

RFA 21

Admit CSAA used template language for claim denials in third-party bodily injury matters in 2020–2022.

RFA 22

Admit the denial letter was communicated to a consumer for purposes of the UCL.

RFA 23

Admit CSAA participated in discovery disputes in CGC-21-594102 after the denial letter.

RFA 24

Admit CSAA will not contend the entire claim file is privileged from production in this action.

RFA 25

Admit Form Interrogatory 17.1 (DISC-001) is a proper companion to these RFAs.

RFA 26

1 Admit CSAA received SFPD records responsive to the collision before trial in CGC-21-594102.

2 **RFA 27**

3 Admit CSAA's February 25, 2021 letter was signed by a person with authority to deny the claim.

4 **RFA 28**

5 Admit the claim involved a pedestrian versus vehicle collision.

6 **RFA 29**

7 Admit CSAA investigated the claim through assigned adjusters.

8 **RFA 30**

9 Admit CSAA maintains a claims manual for third-party bodily injury.

Dated: April 22, 2026



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